

COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Notice of Motion (Long Form)

NOTE: This document was filed electronically by the Registrar on 16/4/2026 at 2:55:28 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No:

In the matter between:

Afrocentric Investment Corporation Limited

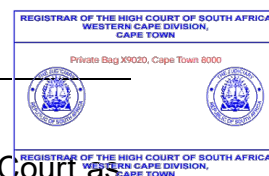
Applicant

and

Wilbur William Matthee

Respondent

NOTICE OF MOTION



TAKE NOTICE that application will be made to the above Honourable Court as a matter of urgency at **10h00** on **16 April 2026**, or as soon thereafter as counsel may be heard, for an order in the following terms:

- 1 Dispensing the time periods, forms and manner of service provided for in the Uniform Rules of the Court and condoning non-compliance with the rules due to urgency in terms of Rule 6(12);
- 2 Issuing a rule nisi calling upon the respondent to appear and show cause, at a date and time to be determined by this Honourable Court, why a final order should not be made in the following terms:
 - 2.1 Interdicting and restraining the respondent from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police and Prisons Civil Rights Union

(POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the “Mahlangu Root Cause Analysis” or “Mahlangu RCA”, or any information relating to the applicant’s internal systems, clinical processes, financial affairs, or integration architecture;

2.2 Interdicting and restraining the respondent from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a “Whistleblower’s Manifesto” or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it;



2.3 Interdicting and restraining the respondent from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant;

2.4 Interdicting and restraining the respondent from demanding, soliciting, or attempting to obtain any payment, settlement, or other

benefit from the applicant by means of threats, coercion, or intimidation, including but not limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings;

- 2.5 Interdicting and restraining the respondent from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs;



- 3 Ordering that, pending the return date, the provisions of paragraphs 2.1 to 2.5 above shall operate as an interim interdict with immediate effect;
- 4 Granting the applicant leave to supplement its founding affidavit within 10 (ten) days of the date of this order;
- 5 Directing the respondent to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit;
- 6 Directing the applicant to file any replying affidavit within 10 (ten) days of service upon it of the respondent's answering affidavit;
- 7 Granting leave to the applicant to effect service of the order granted on the applicant at his email address - info@ethichawks.co.za;

- 8 Directing that the matter is to be set down for hearing on the return date on a date to be determined by the Registrar of this Honourable Court, such date to be not less than 5 (five) days after the expiry of the time period for the filing of the applicant's replying affidavit;
- 9 Directing that the respondent pay the costs of this application;
- 10 Granting the respondent leave to anticipate the return day upon 24 hours' written notice to the applicant;
- 11 Granting the applicant further and/or alternative relief.



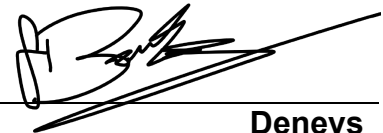
TAKE NOTICE FURTHER THAT should you intend opposing this application, you are required to:

- (a) Appear and make representations at the hearing of this matter at 10h00 on 16 April 2026, or as soon thereafter as counsel may be heard; and thereafter
- (b) File a notice of intention to oppose, together with any answering affidavit, in accordance with the time periods set out in the rule nisi, at the applicant's attorneys of record address <mailto:tristan.marot@nortonrosefulbright.com> <mailto:donald.dinnie@nortonrosefulbright.com> set out below or via email at jason.whyte@deney.co.za.

TAKE NOTICE FURTHER that the affidavit of **GERALD NEVILLE VAN WYK**, and the annexures thereto, will be used in support hereof.

Kindly place the matter on the roll for hearing accordingly

Dated at **Cape Town** on this the **16th** day of **April 2026**.



Deneys
Attorneys for Applicant
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117 Strand Street
Cape Town

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Fax: 021 405 5509

Email: Jason.whyte@nortonrosefulbright.com

Ref: Jason Whyte / FB / AFR1282



TO:
The Registrar of the High Court
Cape Town

By Hand / Caselines

AND TO:
Wilbur William Matthee
Respondent
15 Bellevue Street
Voorbrug
Cape Town
7100
Tel: 069 635 1435
Email: info@ethichawks.co.za

By Email